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Case Number: 25STCV11155 Hearing Date: August 27, 2026 Dept: 224

6222 Wilshire Associates, L.P. v. Lira Hospice, Inc. et al.,

TENTATIVE RULING

The motion for attorney's fees is GRANTED. The Court awards \$66,998.75 in attorney's fees and \$4,805.10 in costs for a total of \$71,803.85.

Accordingly, the motion to amend is GRANTED. The Judgment entered June 30, 2026, is amended as follows:

1. Summary judgment is entered in favor of Plaintiff 6222 Wilshire Associates, L.P. and against defendants David Wittenberg and Chanah Wittenberg, jointly and severally, in the amount of \$519,410.69 (eighth cause of action for breach of written guaranty as to Suite 240).
2. Summary judgment is entered in favor of Plaintiff 6222 Wilshire Associates, L.P. and against defendant David Wittenberg in the amount of \$1,837,038.66 (\$291,824.32 on the fourth cause of action as to Suite 225; \$736,431.66 on the twelfth cause of action as to Suite 260; and \$808,782.68 on the sixteenth cause of action as to Suite 515). This modification shall not limit the liability of the community property of Chanah Wittenberg.

Moving party is to file a Proposed Amended Judgment within 5 days, which the Court will not sign until the time has passed for any objections to the Proposed Judgment.

The Court sets a Nonappearance Case Review for 9/25/26 at 4:00 p.m. for Signing of the Amended Judgment.

ANALYSIS

Introduction

On April 16, 2025, Plaintiff filed the Complaint in this action.

On September 30, 2025, Plaintiff obtained a right to attach order and writ of attachment against Defendant David Wittenberg in the amount of \$2,441,706.76, which was recorded with the Los Angeles County Recorder's Office on December 11, 2025.

On or about March 24, 2026, Plaintiff filed the instant Motion for Summary Judgment, or in the Alternative, Summary Adjudication, against Guarantor Defendants David Wittenberg and Chanah Wittenberg.

On June 25, 2026, the Court granted Plaintiff's Motion for Summary Judgment against the Guarantor Defendants in the principal amount of \$2,356,449.35, and Plaintiff dismissed the Entity Defendants without prejudice.

On June 30, 2026, the Court entered judgment against the Guarantor Defendants.

On July 10, 2026, Plaintiff served notice of entry of judgment and filed its memorandum of costs.

On July 20, 2026, Plaintiff filed the instant Motion for Attorney's Fees and Costs and Motion to Modify Judgment.

No opposition has been filed.

Legal Standard

Amend Order

The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order. (CCP §473(d).) A court has the inherent power to correct clerical errors in its records so as to make these records reflect the true facts. (In re Candelario (1970) 3 Cal.3d 702, 705.) "The test which distinguishes clerical error from possible judicial error is simply whether the challenged portion of the judgment was entered inadvertently (which is clerical error) versus advertently (which might be judicial error, but is not clerical error). Unless the challenged portion of the judgment was entered inadvertently, it cannot be changed post judgment under the guise of correction of clerical error." Tokyo Marine & Fire Ins. Corp. v. Western Pacific Roofing Corp. (1999) 75 Cal.App.4th 110, 117 (internal citation omitted). "An amendment that substantially modifies the original judgment or materially alters the rights of the parties, may not be made by the court under its authority to correct clerical error, therefore, unless the record clearly demonstrates that the error was not the result of the exercise of judicial discretion." (In re Candelario, 3 Cal. 3d. at 705.)

Attorney's Fees

"[A]s a general rule, attorney fees are not recoverable as costs unless they are authorized by statute or agreement." (People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc. (2007) 147 Cal.App.4th 424, 429.)

For contracts actions, "where the contract specifically provides that attorney's fees and costs, which are incurred to enforce the contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civ. Code § 1717(a).) "[T]he party prevailing on the contract shall be the party who recovered a greater relief in the action on the contract." (Id.)

"The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....'" "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award...." (Graciano v. Robinson Ford

Sales, Inc. (2006) 144 Cal.App.4th 140, 154.)

"In determining the lodestar amount, a prevailing party generally may not recover for work on causes of action on which the party was unsuccessful" except in some cases where amounts are so intertwined that it would be impracticable to separate them out. (Mann v. Quality Old Time Service, Inc. (2006) 139 Cal.App.4th 328, 342; Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 157.) " 'Attorneys fees need not be apportioned between distinct causes of action where plaintiff's various claims involve a common core of facts or are based on related legal theories.' " Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 159.) "[A]ttorney fees need not be reduced for work on unsuccessful claims if the claims 'are so intertwined that it would be impracticable, if not impossible, to separate the attorney's time into compensable and noncompensable units.'" (Mann v. Quality Old Time Service, Inc. (2006) 139 Cal. App. 4th 328, 342.)

In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "fees customarily charged by that attorney and others in the community for similar work." (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal. App. 4th 976, 997, overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal. 4th 644, 664.) "A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether." (Chavez v. City of L.A. (2010) 47 Cal.4th 970, 990.)

Motion for Attorney's Fees

Here, Plaintiff moves the Court for an award of attorney's fees in the amount of \$66,998.75 and costs in the amount of \$4,805.10 for a total of \$71,803.85.

Lodestar

Plaintiff requests a lodestar in the amount of \$66,998.75 in attorney fees.

The hourly rates for the attorneys and paralegals who billed on this matter range from \$225 to \$750 per hour, with attorney time billed at rates between \$595 and \$750 per hour and paralegal time billed at \$225 per hour. The declaration of Mark J. Rosenbaum sets forth each timekeeper's experience and year of admission: Mr. Rosenbaum (\$750; admitted 1993), Elsa M. Horowitz (\$725; admitted 1998),

Johnny White (\$725; admitted 2010), and Daniel Medioni (\$595; admitted 2011), together with two paralegals having over fifteen and over ten years of experience, respectively (\$225). (Rosenbaum Decl. ¶¶ 13, 15.)

The Court finds the hourly rates to be reasonable.

Plaintiff seeks to recover fees for 120.25 hours of work incurred on the matter.

In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 564.) Here, the motion is unopposed, and therefore unchallenged. The lodestar is awarded in the amount of \$66,998.75.

Costs

Plaintiff claims \$4,805.10 in costs, comprising filing and motion fees (\$1,295.00), service of process (\$1,825.35), attachment expenses (\$1,345.00), and electronic filing/service fees (\$339.75). These fall within the categories allowable under Code of Civil Procedure section 1033.5, and no motion to tax has been filed.

The costs are granted as claimed.

Conclusion

The motion for attorney's fees is GRANTED. The Court awards \$66,998.75 in attorney's fees and \$4,805.10 in costs for a total of \$71,803.85.

Motion to Modify Judgment

Plaintiff moves under Code of Civil Procedure section 473, subdivision (a), to modify the Judgment. Plaintiff represents that, on reviewing the guaranties in connection with the fee motion, counsel determined that David Wittenberg signed all four guaranties, whereas Chanah Wittenberg signed only the Suite 240 guaranty and merely consented to the guaranties for Suites 225, 260, and 515. On that basis, Plaintiff asks the Court to amend the Judgment so that:

(1) Judgment on the Suite 240 guaranty (\$519,410.69) runs jointly and severally against David Wittenberg and Chanah Wittenberg; and

(2) Judgment on the Suite 225, 260, and 515 guaranties (\$1,837,038.66 in the aggregate) runs against David Wittenberg alone, "without limiting the liability of the community property of Chanah Wittenberg."

As an initial matter, Section 473(a) authorizes the amendment of pleadings and proceedings – adding or striking parties and correcting mistakes – and is ordinarily invoked before judgment. Post-judgment modification of a judgment is more commonly analyzed under the Court's authority to conform a judgment to its actual decision, under section 473(d) (correction of a judgment), or under section 663. The Court is inclined to treat the motion as one to conform the Judgment to the adjudicated scope of each guarantor's liability.

The substance of the requested modification – conforming Chanah Wittenberg's personal liability to the single guaranty she executed – is well taken. The amendment reduces, rather than expands, Chanah Wittenberg's exposure and conforms the Judgment to the guaranties on which summary judgment was granted. Further, the motion is unopposed. Because summary judgment was premised on the guaranties themselves, amending the Judgment so that personal liability tracks the instruments each guarantor actually signed conforms the Judgment to the adjudicated basis for liability.

Accordingly, the motion to amend is GRANTED. The Judgment entered June 30, 2026, is amended as follows:

3. Summary judgment is entered in favor of Plaintiff 6222 Wilshire Associates, L.P. and against defendants David Wittenberg and Chanah Wittenberg, jointly and severally, in the amount of \$519,410.69 (eighth cause of action for breach of written guaranty as to Suite 240).

4. Summary judgment is entered in favor of Plaintiff 6222 Wilshire Associates, L.P. and against defendant David Wittenberg in the amount of \$1,837,038.66 (\$291,824.32 on the fourth cause of action as to Suite 225; \$736,431.66 on the twelfth cause of action as to Suite 260; and \$808,782.68 on the sixteenth cause of action as to Suite 515). This modification shall not limit the liability of the community property of Chanah Wittenberg.

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Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.